

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

JOSE ADALID PINEDA MORENO,

Petitioner

VS.

SANDRA ESTER GALDAMEZ FIGUEROA,

Respondent

) Case Number: FDI-26-802770

) Hearing Date: July 14, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) Petitioner Jose Adalid Pineda Moreno (Father) and Respondent Sandra Ester Galdamez Figueroa (Mother) have one minor child, Edward (DOB 2/6/2018, age 8).
- 2) On for hearing is Father's 4/8/2026 request seeking joint legal and physical custody, with a week-on, week-off parenting time schedule.
- 3) On 5/8/2026, Mother filed a response in which she seeks: (1) sole legal custody and primary physical custody with visitation to Father on Fridays after school through Sundays at 4PM; (2) right of first refusal so Mother gets the option to care for Edward if Father is unable to do so for 3 hours or more during his custody time; and (3) that the Court order Father to keep Edward in extracurriculars during his custodial time. Regarding legal custody, Mother states that Father never participated in Edward's school conferences, extracurriculars, or medical appointments. Mother states that for 6 years since their separation, the parties have followed the same schedule of Mondays through Fridays to Mother and Fridays to Sundays to Father. She also states that Edward has been living with her daughter Jennifer (age 15) since 2020, and they

1 have a strong bond; therefore, changing parenting time is not in Edward's best interests. Mother  
2 states her concern that Edward often stays with "strangers" when in Father's care, and that Father  
3 does not tell Mother who these people are.

#### 4 **B. Findings and Orders**

- 5 1) This Court has jurisdiction to make child custody orders in this case under the Uniform  
6 Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party  
7 in violation to civil or criminal penalties, or both. The country of habitual residence of the minor  
8 child is the United States.
  - 9 2) The Court finds it is in Edward's best interests for the parties to have joint legal and physical  
10 custody, with parenting time for Father from Fridays after school to Sundays at 4PM. In addition,  
11 Father shall have parenting time on one weekday afternoon/evening from after school to 7PM  
12 drop off at Mother's home, curbside. The parties shall agree, in writing, to the day of the week the  
13 additional parenting time will occur. If they are unable to agree, the weekly afternoon/evening  
14 parenting time shall occur on Wednesdays.
  - 15 3) The parties shall notify each other of the names and contact information of any childcare  
16 providers who will be caring for Edward during their respective custodial times.
  - 17 4) Right of First Refusal – If a party will be unable to care for Edward for any 6-hour period during  
18 their scheduled custodial time, they shall advise the other party of their upcoming unavailability  
19 and ask the other party if they are able to care for Edward. The other party shall have 24 hours to  
20 respond to accept or decline care during the identified time. If no response is given or the other  
21 party is not available to care for Edward, then the regularly scheduled custodial party is  
22 responsible for securing childcare.
  - 23 5) If the parties wish to change the above parenting time schedule, they may do so by agreeing to a  
24 different parenting schedule in writing (text message or email is acceptable). If they are unable to  
25 agree to a different parenting time schedule, either party may file a new request for order with the  
26 Court.
  - 27 6) The Court will prepare the Findings and Order After Hearing.
- 28  
29